

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Raquel Velasquez	Team: Squad #12	CCRB Case #: 201700935	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 02/05/2017 7:50 PM	Location of Incident: Over the telephone	18 Mo. SOL 8/5/2018	Precinct: 78		
Date/Time CV Reported Sun, 02/05/2017 7:57 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Sun, 02/05/2017 7:57 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Denisse Pacheco	00800	949434	078 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Denisse Pacheco	Abuse: Police Officer Denisse Pacheco refused to provide her shield number to § 87(2)(b)	A . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via the Call Processing System on February 5, 2017.

On February 5, 2017, at approximately 7:50 p.m., § 87(2)(b) called the 78th Precinct stationhouse telephone switchboard operator to follow up on a noise complaint she had filed earlier that day. PO Denisse Pacheco, from the 78th Precinct, answered the call. § 87(2)(b) mentioned that officers were supposed to respond to the call that she had made earlier. PO Pacheco was rude, but § 87(2)(b) did not recall what she said. § 87(2)(b) then asked, “What’s your badge number?” PO Pacheco allegedly responded, “1234” (**Allegation A**).

No arrests or summonses resulted from this incident.

There is no video evidence of this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- Results regarding a Notice of Claim are pending (**Board Review 01**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (**Board Review 03**).
- PO Denisse Pacheco has been a member of the service for six years and there no substantiated CCRB allegations against her.

Findings and Recommendations

Allegation A- Abuse of Authority: Police Officer Denisse Pacheco refused to provide her shield number to § 87(2)(b)

§ 87(2)(b) stated that she called the 78th Precinct telephone switchboard operator to follow up on a noise complaint she had filed earlier that day. PO Pacheco answered the call and identified herself as “Officer Pacheco.” § 87(2)(b) asked to speak to the officer with whom she filed her complaint. PO Pacheco stated that the officer was unavailable. § 87(2)(b) mentioned that officers were supposed to respond to a call that she had made earlier. PO Pacheco made a “smart” comment and was rude, but § 87(2)(b) did not recall what she said. § 87(2)(b) then asked, “What’s your badge number?” PO Pacheco responded, “1234.” § 87(2)(b) did not recall whether she or PO Pacheco ended the call thereafter (**Board Review 04**).

PO Pacheco acknowledged speaking to § 87(2)(b) via telephone. She answered the call by stating, “78th Precinct, Officer Pacheco. How may I help you?” § 87(2)(b) stated that she wanted to file a noise complaint. She did not believe that § 87(2)(b) asked to speak with another officer. PO Pacheco told § 87(2)(b) that the precinct was busy, but that a unit would be dispatched to her home as soon as possible. § 87(2)(b) stated, “Okay. Let me have your name.”

PO Pacheco stated, “800, Pacheco.” § 87(2)(b) did not believe that PO Pacheco’s shield number is 800 because she stated, “800? No really, what’s your shield?” PO Pacheco repeated, “It’s 800. Would you like me to say 1234?” PO Pacheco and § 87(2)(b) laughed and PO Pacheco repeated that her shield number is “800.” The call lasted approximately one minute and ended thereafter **(Board Review 05)**.

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **Unsubstantiated**.

Squad: **12**

Investigator:	_____	<u>Raquel Velasquez</u>	_____
	Signature	Print	Date
Squad Leader:	_____	<u>Lily Carayannis</u>	_____
	Title/Signature	Print	Date